IN THE HIGH COURT OF DELHI AT NEW DELHI

CS(COMM) 412/2025

Vardhan Infotech Private Limited v Kestrel Limited

WRITTEN STATEMENT on behalf of the Defendant

1. The suit is liable to be dismissed as the Defendant disputes the claim in the manner set out below.

2. It is denied that any legal notice dated 5 February 2025 was received by the Defendant. No such notice was ever received at its registered office.

3. The Master Services Agreement dated 12 January 2023 was amended by Amendment No. 1 dated 10 May 2024, under which the Go-Live Date was extended to 31 July 2024.

4. The platform went live on 12 July 2024, before the extended Go-Live Date. There was no delay on the part of the Plaintiff.

5. The Defendant admits receipt of invoice INV-014 dated 15 September 2024 for Rs. 18,40,000.

6. It is denied that the Defendant has not paid. The Defendant paid Rs. 6,00,000 on 14 March 2025 towards invoice INV-014.

7. The Defendant is entitled to withhold Rs. 3,00,000 on account of defects in the delivered modules.

8. The claim for interest is denied.

Dated this 2 June 2025

Advocate for the Defendant